

25STCV31438 25STCV31438

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-08-24

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Case Number: 25STCV31438 Hearing Date: August 24, 2026 Dept: 735

Supply &

Demand, Inc. v. Anthony Kaye, et al.

Plaintiff

propounded discovery on March 17, 2026.

Defendant Anthony Kaye ("Defendant") provided deficient, objection-only responses on April 20, 2026. The parties met and conferred multiple times between April and May 2026 and eventually agreed to narrow certain defined terms and for Defendant to serve supplemental responses by June 3, 2026.

Defendant, however, served supplemental responses on August 11, 2026, the same day as his opposition was filed. Based

on the supplemental responses, Plaintiff, in reply, requests supplemental responses to Requests for Admissions Nos. 3-8, 18, 26, and 31-33.

Responses

RFA No. 3:

Deny. The Court agrees with Plaintiff that the defined-term narrowing cuts across Defendant's ambiguity argument and Defendant's response is not Code-complaint. However, although Plaintiff has attached a copy of the document to the first amended complaint, Plaintiff has failed to attach a copy of the document to the discovery request, in violation of Code of Civil Procedure section 2033.060, subdivision (g).

RFA No. 4:

Deny. See RFAs No. 3 analysis.

RFA No. 5:

Grant. Plaintiff's request is not seeking an admission as to the genuineness of the document, thus Defendant's Code of Civil Procedure section 2033.060, subdivision (d) argument is unpersuasive. Also, as discussed above, the parties' agreement to narrow the defined terms eliminates ambiguity concerns. Defendant states that he "lacks the personal knowledge to admit any of this request. After a reasonable inquiry concerning the matter in this request has been made, the information known or readily obtainable is insufficient to enable Defendant to admit or deny the entire matter." However, the Court finds this response to be evasive because the agreement references that Plaintiff is a lienholder of Defendant's tangible and intangible properties. Defendant shall provide a Code compliant response within 10 days.

RFA No. 6:

Grant.

Plaintiff's request is not seeking an admission as to the genuineness of the document, thus Defendant's Code of Civil Procedure section 2033.060, subdivision (d) argument is unpersuasive. Also, as discussed above, the parties' agreement to narrow the defined terms eliminates ambiguity concerns. Defendant states that he "lacks the personal knowledge to admit any of this request. After a reasonable inquiry concerning the matter in this request has been made, the information known or readily obtainable is insufficient to enable Defendant to admit or deny the entire matter." However, the Court finds this response to be evasive because the agreement references that Defendant is required to sign a wage assignment form for employment. Defendant shall provide a Code compliant response within 10 days.

RFA No. 7:

Grant. See RFAs No. 5 analysis. Defendant shall provide a Code compliant response within 10 days.

RFA No. 8:

Grant. See RFAs No. 6 analysis. Defendant shall provide a Code compliant response within 10 days.

RFA No. 18:

Grant. As discussed above, the parties' agreement to narrow the defined terms eliminates ambiguity concerns. Defendant states that he "lacks the personal knowledge to admit any of this request. After a reasonable inquiry concerning the matter in this request has been made, the information known or readily obtainable is insufficient to enable Defendant to admit or deny the entire matter." However, the Court finds this response to be evasive because Defendant should reasonably know whether he has made a payment since February 25, 2019. Defendant shall provide a Code compliant response within 10 days.

RFA No. 26:

Grant. As discussed above, the parties' agreement to narrow the defined terms eliminates ambiguity concerns. Defendant states that he "[a]fter a reasonable inquiry concerning the matter in the request has been made, the information known or readily obtainable is insufficient to enable Defendant to admit or deny the entire matter." However, the Court finds this response to be evasive because Defendant has admitted in response to RFAs No. 25 that he is the sole controlling shareholder of Tony Kaye Pictures, Inc.; thus, Defendant should reasonably know whether a formal board of directors meeting has been held since 2018. Defendant shall provide a Code compliant response within 10 days.

RFA No. 31:

Grant. As discussed above, the parties' agreement to narrow the defined terms eliminates ambiguity concerns. Defendant states that he "lacks the personal knowledge to admit any of this request. After a reasonable inquiry concerning the matter in this request has been made, the information known or readily obtainable is insufficient to enable Defendant to admit or deny the entire matter." However, the Court finds this response to be evasive because Defendant should reasonably know whether he has any documents supporting a claim that the debt owed to S&D was paid. Defendant shall provide a Code compliant response within 10 days.

RFA No. 32:

Grant. As discussed above, the parties' agreement to narrow the defined terms eliminates ambiguity concerns. Defendant states that he "lacks the personal knowledge to admit any of this request. After a reasonable inquiry concerning the matter in this request has been made, the information known or readily obtainable is insufficient to enable Defendant to admit or deny the entire matter." However, the Court finds this response to be evasive because Defendant should reasonably know whether he has any documents showing that S&D agreed to forgive, waive, or release the debt. Defendant shall provide a Code compliant response within 10 days.

RFA No. 33:

Grant. As discussed above, the parties' agreement to narrow the defined terms eliminates ambiguity concerns. Defendant states that he "lacks the personal knowledge to admit any of this request. After a reasonable inquiry concerning the matter in the request has been made, the information known or readily obtainable is insufficient to enable Defendant to admit or deny the entire matter." However, the Court finds this response to be evasive because Defendant should reasonably know whether he had insufficient remaining assets to satisfy his debts to S&D after the March 12, 2024 transfer of the defined property. Defendant shall provide a Code compliant response within 10 days.

Sanctions

In reply,

Plaintiff requests \$11,289.00 in sanctions at \$795/hour. This includes \$5,565.00 in fees and costs sought in the Motion (7 hours of work) and an additional \$5,742.00 in fees and costs sought in the Reply (7.2 hours of work). Defendant failed to address the two-month delay in serving supplemental responses in its opposition or declaration. The Court finds the time and hourly rate reasonable. Accordingly, the Court awards \$11,289 in sanctions against Defendant.

Defendant also

requested \$3,850 in sanctions at \$350/hour (6 hours drafting the opposition, 1 hour reviewing the reply, and 2 hours for preparing and appearing at the hearing). The Court finds that because the motion was primarily granted in part, with only two requests denied due to a procedural error, sanctions against Plaintiff are unjustified. Accordingly, the Court denies Defendant's

request for sanctions in its discretion.

Conclusion

Defendant shall
provide Code compliant responses within 10 days to Requests for Admission 5, 6,
7, 8, 18, 26, 31, 32, and 33.

Defendant shall
pay plaintiff's counsel \$11,289 in attorney's fees as sanctions within 30 days.